

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual Appellate Order Applying the Separate-Document Timing Rule

Filed: July 10, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Calculation of the conditional notice deadline where no separate judgment was entered.

Asterglen Freight Software, Inc., Prospective Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Prospective Appellees.

The district clerk certifies that the district court entered a supported Rule 54(b) order on February 4, 2026 but never entered the separate judgment required by Federal Rule of Civil Procedure 58(a). We address only the date on which the judgment is treated as entered for purposes of Federal Rule of Appellate Procedure 4(a).

Rule 4(a)(7)(A)(ii) applies when Rule 58(a) requires a separate document but none is entered. In that circumstance, entry for appellate timing occurs when judgment is entered in the civil docket and either a separate document is later entered or 150 days have run from docket entry, whichever occurs first. No separate document appeared here.

The supported certification finally resolved Count I for this conditional calculation; the omitted item is the distinct judgment document, not a merits ruling or the required no-just-reason determination.

Computation of Deemed Entry and Notice Period

The February 4 docket entry is the starting event. The day of the event is excluded. The 150-day period ordinarily reaches Saturday, July 4, 2026. Because the final day was both a Saturday and a legal holiday, the computation rule continues the period through the end of Monday, July 6, the next day that was not a Saturday, Sunday, or legal holiday.

The judgment is therefore treated as entered for Rule 4(a) purposes on July 6, 2026. This result does not create a separate judgment on the district docket; it applies the timing backstop to prevent indefinite uncertainty when the required document is omitted.

Federal Rule of Appellate Procedure 4(a)(1)(A) supplies thirty days after deemed entry because no federal party participates. Excluding July 6 and counting thirty calendar days yields Wednesday, August 5, 2026. That date is a business day and requires no further extension. A notice filed on or before August 5 would be timely under this conditional calculation. A later notice would require some independently authorized extension or reopening.

The district status certificate filed July 6 reports facts but does not itself restart or enlarge the period.

Order and Limitations

It is ORDERED that the conditional notice-of-appeal deadline arising from the missing separate document is August 5, 2026. The underlying supported certification is treated as entered on July 6 solely for the timing analysis required by Rules 4(a)(7) and 58(c)(2).

This order does not decide the merits of Asterglen's contract claim, determine whether any future notice adequately identifies an appealed judgment, or excuse a filing made after August 5. It also does not direct the district court to enter a separate judgment now. If a separate document had been entered before the 150-day backstop ran, the earlier entry could have controlled; the certified record shows none.

The calculation is confined to appellate Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED and district Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED. It must not be applied to a different appeal, judgment, or docket entry. Narrowed Count II remains pending, and the Rule 54(b) order remains the source of finality for Count I.

The Clerk shall transmit this order to the district clerk and note August 5, 2026 as the conditional deadline. No mandate issues because this order resolves a timing question rather than an appeal from a filed notice.

Entered July 10, 2026.

BY THE COURT Judicial signature designation